

Form No: HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT**

Case No.

Crl. Misc. No.1446/B/2015

Muhammad Yousaf

Versus

The State & another

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
--------------------------------	-------------------------------	---

09) 27.08.2015 Malik Muhammad Amir Zia, Advocate along with the petitioner.
Mr. Muhammad Ajmal Khan, Advocate for the complainant.
Mr. Gulzar Ahmad Sabir, Additional Prosecutor General.
Khurshid, SI.

Through this petition, Muhammad Yousaf the petitioner seeks pre-arrest bail in case FIR No.97 dated 07.05.2015 for offences under Sections 365-B & 376 of The Pakistan Penal Code, 1860, registered with Police Station Noshera Jadeed District Bahawalpur.

2. Shortly, the allegation against the present petitioner as per crime report is that on 15.12.2014 at about 05:00 p.m. he along with his co-accused being equipped with firearms abducted the complainant and kept on committing rape with her, who on finding opportunity made her escape good and came to her parents' house.

3. Having heard the learned counsel for the parties, I have perused the record.

4. This Court, during the arguments, has observed that admittedly the complainant is carrying seven months

pregnancy and the baby in her womb is of the present petitioner. The occurrence as narrated in the crime report took place on 15.12.2014 but the matter was reported to the police after the delay of more than five months without any justified explanation. The petitioner has also placed on record the registered 'Nikah Nama' which reflects the date of 'Nikah' as 30.11.2014, i.e. prior to the date of alleged abduction of the complainant. Nikah Khawan, Tufail Ahmad Khan joined the investigation on 30.07.2015 and got recorded his statement under Section 161 of The Code of Criminal Procedure, 1898, verifying the factum of voluntary 'Nikah' between the spouses with their free will and consent which prima-facie negates the prosecution story. In the socio-cultural background of the area, possibility of false implication of the present petitioner by the complainant at the instance of her parents having no care about the legitimacy of the baby being carried by their daughter, cannot be ruled out. The petitioner has joined the investigation with his plea of valid 'Nikah'. Suit for restitution of conjugal rights filed by the present petitioner and that of jactitation of marriage filed by the complainant are still pending adjudication before the learned Family Court. During investigation on 22.05.2015 it has been brought to the notice of Investigation Officer as contended by the learned counsel for the petitioner that 'Sharai Nikah' between Muhammad Makki (brother of the complainant) and Mst. Aalia (sister of the petitioner) has also been solemnized prior to the registration of this criminal case. Pre-arrest bail of Muhammad Younas and Muhammad Asghar, co-accused persons has

already been confirmed by the learned court of first instance vide order dated 20.06.2015.

5. For what has been discussed above, the instant bail petition is allowed and ad-interim pre-arrest bail already granted to Muhammad Yousaf, petitioner is confirmed subject to his furnishing fresh bail bonds in the sum of Rs.1,00,000/- with one surety in the like amount to the satisfaction of learned trial court.

However, the observations recorded supra are tentative in nature which are meant for disposal of this bail petition only and shall not influence the learned trial court in any manner.

(Syed Shahbaz Ali Rizvi)
Judge

Approved for reporting.

Judge

'Nazir'